**THE CORPORATION OF THE TOWNSHIP OF NIPISSING**

**BY-LAW NO. 2026-19**

Being a by-law to promote public safety and regulate and govern the activities permitted in municipal beach areas.

**WHEREAS** Section 8 of the *Municipal Act*, 2001 provides that Section 8 shall be interpreted broadly so as to confer broad authority on municipalities to (a) enable municipalities to govern their affairs as they consider appropriate and, (b) enhance their ability to respond to municipal issues;

**AND WHEREAS** Section 10.(2)6. of the *Municipal Act,* 2001 provides that a municipality may pass by-laws respecting matters including the health, safety and well-being of persons;

**AND WHEREAS** the Council of the Corporation of the Township of Nipissing prioritizes the health and safety of residents and visitors;

**NOW THEREFORE be it resolved that the Council of the Corporation of the Township of Nipissing hereby enacts as follows:**

**SHORT TITLE**

This By-law may be cited as the "Municipal Beach Safety By-Law".

## 1. DEFINITIONS

a) "*Beach*" means a municipally owned land abutting a waterbody that is designated for swimming and beach-related recreation.
b) "*Fishing*" means angling or attempting to catch fish by any method from land or in the water.
c) "*Signage*" means Township owned, provided and installed signs posted at or near Township property including municipal beaches to notify the public of restrictions, prohibitions, or safety information.

## 2. APPLICATION

This By-law applies to the municipally designated Beaches known as:

i) Wolfe Lake Beach, 705 Wolfe Lake Road.
ii) Link's Beach, 679 Sunset Cove Road.

## 3. PROVISIONS

a) Fishing restrictions – no person shall fish on or from a municipal beach; from land or within the water within 30 metres of the shoreline of the municipal beach.
b) Storage or Possession of Fishing Equipment – no person shall store, leave or deposit lures, bait, hooks, lines, poles or other equipment used for the purpose of fishing on a municipal beach or in a location or manner that may injure or cause injury to a person or animal.
c) Fish Cleaning and Disposal – no person shall clean fish or dispose of fish waste, bait or fishing equipment upon a municipal beach.
d) Respect for signage – no person shall remove, damage, or interfere with any Township sign or marker intended to identify a municipal beach area and safety provisions therein.

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## 4. ENFORCEMENT

A Municipal Law Enforcement Officer, Provincial Offences Officer, Police Officer, or other duly appointed individual shall enforce the provisions of this by-law. No person shall obstruct, hinder, or otherwise interfere with a Municipal Law Enforcement Officer, Provincial Offences Officer, Police Officer or other duly appointed individual in the lawful carrying out of their duties and responsibilities under the provisions of this by-law.

## 5. PENALTIES

Every person who contravenes any provision of this by-law is guilty of an offence and upon conviction is liable to a penalty, not exceeding $1,000 (one thousand dollars) for each offence, exclusive of the costs, as provided for by the Provincial Offences Act, R.S.O. 1990, Chapter P.33, as amended.

## 6. COMMUNITY AWARENESS

The Township shall post signage on municipal beaches indicating restrictions and promoting safe us of the beach and swimming area. Where possible, signage shall include recognized safety symbols to ensure accessibility for all visitors.

Public education materials may be advertised seasonally to advise residents and visitors of safe practices on municipal beaches and within swimming areas. These materials will be made available on the Township website and social media platforms in use.

## 7. EFFECTIVE DATE

This By-law comes into effect once passed by Council.

**READ A FIRST, SECOND AND THIRD TIME AND PASSED THIS 19TH DAY OF MAY, 2026.**

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**Dave Yemm, MAYOR**

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**Kris Croskery-Hodgins,**
**Municipal Administrator-Clerk-Treasurer**

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By-Law Number 2026-19
Schedule "B"

THIS IS SCHEDULE "B" TO
BY-LAW NUMBER 2026-19 Municipal Beach Safety By-Law

THE CORPORATION OF THE TOWNSHIP OF NIPISSING

Penalties – Part 5

Set Fines Part I
Provincial Offences Act

| Item | Short Form Wording | Provision creating or defining offence | Set Fine |
|---|---|---|---|
| 1 | Fishing within 30 metres of a municipal beach or shoreline of a municipal beach | 3.a. | $300.00 |
| 2 | Storing or possessing fishing equipment on a municipal beach | 3.b. | $300.00 |
| 3 | Fish cleaning or disposal of fish waste on a municipal beach | 3.c. | $300.00 |
| 4 | Remove, damage or interfere with a Township sign on a municipal beach | 3.d. | $300.00 |

Note: The penalty provision for the offences indicated above is section 5 of By-Law Number 2026-19, a certified copy of which has been filed.

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